

OFFICE OF THE SECRETARY

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June 7, 2019

The Honorable Jeffrey F. Fraser
Judge of the Superior Court
County of San Diego
P.O. Box 122724
San Diego, CA 92112

Re: Ernesto Hernandez Jr.
CDCR No: P76829
Case No: SCS143769-1
Date of Sentence: April 11, 2000

Dear Honorable Jeffrey F. Fraser:

The purpose of this letter is to provide the court with the authority to resentence inmate Ernesto Hernandez Jr., CDCR Number P76829, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Hernandez has received two Rule Violation Reports (RVRs) since being received to the California Department of Corrections and Rehabilitation (CDCR) on May 1, 2000. However, he has remained disciplinary free since April, 2008. Inmate Hernandez is currently assigned as a Dining Room worker. Inmate Hernandez also participates with the Incarcerated, Vietnam Veterans of America and has been commended for his participation and commitment to the group's effort.

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Having reviewed the enclosed documentation it appears that inmate Hernandez's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Michael M. Roddy, County Court Executive Officer
San Diego County District Attorney's Office
San Diego County Public Defender's Office